

Section 107 provides that application for compensation for loss, destruction, damage, etc. of goods should be filed against the railway administration on whom a notice under Sec. 106 has already been served.

108. Person entitled to claim compensation – (1) If a railway administration pays compensation for the loss, destruction, damage, deterioration or non-delivery of goods entrusted to it for carriage, to the consignee or the endorsee producing the railway receipt, the railway administration shall be deemed to have discharged its liability and no application before the Claims Tribunal or any other legal proceedings shall lie against the railway administration on the ground that the consignee or the endorsee was not legally entitled to receive such compensation.

(2) Nothing in Sub-section(1) shall affect the right of any person having any interest in the goods to enforce the same against the consignee or the endorsee receiving compensation under that sub-section.

Comments

Section 108 deals with the person entitled to claim compensation, absolves the railway administration of its responsibilities and bar suit against it, in cases the claim has been paid to a person on production of railway receipt.

108. Appellant is estopped from taking plea that respondent's father is not duly constituted attorney of the respondent. – The Court cannot in law take the plea that the respondents father had no power of attorney in his favour to file the petitions. Accepting the respondents father as the attorney of the respondent the appellant took the advantage and the appellant should be deemed to be stopped from taking the plea that the respondents father is not the duly constituted attorney of the respondent.

109. Railway administration against which application for compensation for personal injury is to be filed. – An application before the Claims tribunal for compensation for the loss of life or personal injury to a passenger, may be instituted against. –

- (a) the railway administration from which the passenger obtained his pass or purchased his ticket, or
- (b) the railway administration on whose railway the destination station lies or the loss or personal injury occurred.

Comment

“Entertain “ – means of : The expression “Entertain” does not mean same thing as filing of the application. The aforesaid view was expressed by the

Allahabad High Court in Kundan Lal v. Jagannath shargza. A similar view was again taken in Dhoom Chand chain V. Chaman lal gupta, in which the learned Chief Justice Mr. Desai and Mr. Justice Dwivedi gave the same meaning to the expression "Entertain" .

110. Burden of proof : In an application before the Claims Tribunal for compensation for loss, destruction, damage, deterioration or non – delivery of any goods, the burden of proving –

- (a) the monetary loss actually sustained; or
- (b) Where the value has been declared under sub-section (2) of Sec. 103

In respect of any consignment that the value so declared is its true value, shall lie on the person claiming compensation, but subject to the other provisions contained in this act, it shall not be necessary for him to prove how the loss, destruction , damage, deterioration or non-delivery was caused.

Comment

Section 110 provides that burden of proof regarding monetary loss in suits for compensation for any loss, destruction. Etc., lies on the person claiming compensation.

111. Extent of liability of railway administration in respect of accidents at sea.

(1) When a railway administration contracts to carry passengers or goods partly by railway and partly by sea, a condition exempting the railway administration from responsibility for any loss of life, personal injury or loss of or damage to goods which may happen during the carriage by sea from act of god, public enemies, fire, accidents from machinery, boilers and steam and all and every other dangers and accidents of the seas, rivers and navigation of whatever nature and kind shall, without being expressed , be deemed to be part of the contract, and subject to that condition the railway administration shall, irrespective of the nationality or ownerships of the ship used for the carriage to goods which may happen during the carriage by sea, to the extent to which it would be responsible under the Merchant Shipping ACT, 1958 (44 of 1958), if the ships were registered under that Act and the railway administration were owner of the ship and not to any greater extent.

(2) The burden of Proving that any such loss, injury or damage as is mentioned in sub-section (1) happened during the carriage by seal shall lie on the railway administration.

Comment